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EDUCATION

Author(s): WILLIAM E. O'BRIEN

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STATE PARKS AND JIM CROW IN THE DECADE BEFORE *BROWN v. BOARD OF EDUCATION*

WILLIAM E. O'BRIEN

ABSTRACT. African Americans had access to only a small number of state parks in the Jim Crow South. Between the end of World War II and the U.S. Supreme Court's 1954 *Brown v. Board of Education* decision, however, state park officials oversaw a relative expansion in the construction of facilities available to southern blacks. Emphasizing developments leading up to that landmark court ruling, I note that this trend did not indicate waning support for segregation among whites. Rather, this relative expansion was part of a strategy to protect Jim Crow by demonstrating that the "separate-but-equal" principle was being successfully achieved by southern park agencies. This intensified construction was largely a reaction to increasingly successful legal action in federal courts by the NAACP generally; and officials in the state agencies hoped—unsuccessfully—to avoid challenges to state park segregation. After the *Brown* decision, several border states integrated their park systems, but most agencies displayed the reactionary defiance that characterized most white Southerners as the civil rights movement grew. *Keywords:* African Americans, *Brown v. Board of Education*, *Jim Crow*, race, segregation, state parks.

In discussing southern race relations in the decade between World War II and 1954, the historian Numan Bartley cited a Mississippi journalist who "recalled the decade as a 'halcyon period for the exponents of gradualism,' an era when political demagoguery declined and a 'new climate' of racial tolerance gained acceptance" (1995, 38). What existed of this gradualist period ended after 17 May 1954, when the U.S. Supreme Court unanimously ruled that public school segregation violated the Constitution's Fourteenth Amendment (*Brown v. Board of Education of Topeka*, 347 U.S. 483 (1954)). The landmark ruling sparked a vitriolic reaction among most southern whites over what they saw as a federal intrusion so profound that some would call it "the Second Reconstruction" (Woodward [1955] 2002). As a direct result, any gains in white racial tolerance achieved after the war's end would disappear after 1954, and the decade that followed would witness the rise of citizen's councils, a resurgent Ku Klux Klan, and widely known acts of white resistance against integration in both public and private spheres, from schools to lunch counters and beyond.

This apparent postwar pattern, of seemingly hopeful and gradual racial gains for southern blacks that transitioned to white resistance and recalcitrance after 1954, is visible also in the history of state parks systems around the region. African Americans in the South had virtually no access to state parks before the war. There was, however, a significant effort among park agencies around the region to expand the number of separate so-called state parks for Negroes between 1945 and 1954. Such issues of state park exclusion and access have seen little discussion in the parks literature to this point in time, although Jason Byrne and Jennifer Wolch identify the

✂ DR. O'BRIEN is an associate professor of environmental studies at Florida Atlantic University, Jupiter, Florida 33458; [wobrien@fau.edu].

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importance of these themes to geographical discussions of parks (Byrne and Wolch 2009).

During this postwar period, sincerity regarding expansion plans reflected the gradualist trend, evident, for instance, at the 1950 meeting of the Association of Southeastern State Park Directors, which included a strategy session called “State Park Facilities for Our Negro Citizens” (ASSPD 1950). Acknowledging the trend toward improved access, a 1952 article in *Crisis*, the magazine of the National Association for the Advancement of Colored People (NAACP), noted that, although serious recreational inequities remained, “On the state level, the need for providing for the recreational needs of all citizens is recognized increasingly” (Burkhart 1952, 623).

These efforts at providing segregated park spaces largely came to an end after *Brown* as state governments and their park agencies—with the significant exception of the border states—joined the white resistance to integration. The segregation history of southern state parks was, in fact, directly influenced by the integration demands of the *Brown* decision, which set precedent for cases involving state parks and provides an opportunity to weigh in on contemporary discussions about the implications of that landmark Supreme Court ruling.

Specifically, my assertions lend support to those that James Cobb expressed in 2005. In a chapter entitled “Down on *Brown*: Revisionist Critics and the History that Might Have Been,” Cobb, a historian of the South, expressed astonishment at a chorus of recent scholarly voices (particularly liberal ones) that cast doubt on the wisdom of the integration demands of its litigants and the impact of the *Brown* decision itself. At *Brown*’s fiftieth anniversary, when school integration gains appeared to be moving in reverse (see Minow 2010), some critics argued that *Brown*’s significance was overstated and wondered whether more significant gains might have been made if the pre-*Brown*, gradualist racial progress had been allowed to continue.

In his response, Cobb pointed in particular to the legal historian Michael Klarman (2004), who conveyed both assertions. On the first count, Klarman took issue with the assumption that *Brown* inspired subsequent civil rights protest, stating that the evidence of such a connection was “thin” (p. 370). And secondly, he suggested that *Brown* reversed the moderation in racial politics among southern whites, which up to that point appeared to bring significant gains for southern blacks. After *Brown*, “moderation” became “a term of derision” among white southerners (p. 391). In this view, the pursuit of integration by the NAACP’s legal department and endorsed by federal court rulings turned out to be strategically miscalculated and ultimately counterproductive. The backlash the ruling generated among southern whites, at times violent, ended any goodwill toward blacks and ushered in decades of resistance and renewed racial animosity.

Cobb addressed both points: what he called “a naysaying liberal revisionist assault on the perception that the *Brown* decision enabled and energized the civil rights movement”; and the notion of pre-*Brown* moderation (2005, 31). On the latter point, his counterargument resembled the words of another observer Bartley cited, who

stated, regarding the pre-*Brown* decade: "It was a kind of lovely moment . . . when everything seemed to be working but when the hard issues had not been faced" (Bartley 1995, 38). The implication was that, despite apparent gradualist gains, the new climate in the postwar South did not extend to entertaining thoughts of integration, then or in the future. As Cobb put it, "the cry for reform stopped well short of even a hint that Jim Crow must go" (2005, 33).¹

He pointed out that gains achieved in that period were due to African American activism in the courts and through protest, which increased pressure toward reform. In that regard, I suggest that the history of the region's state parks demonstrates that gains in the number and quality of parks added between 1945 and 1954 occurred precisely because of such legal activism. The NAACP's legal strategy regarding state parks put the specter of future integration on full display, spurring southern state park agencies to expand access. Around the region these agencies attempted to add separate facilities for African Americans in order to demonstrate to the federal courts that "separate but equal" was working and ought to remain the law of the land. As such, Cobb's point regarding schools also applied to state parks: After World War II "the most concrete achievements" in improving black education in the region resulted from efforts of white segregationists who sensed "a clear shift in judicial currents" and began "to support efforts to upgrade black schools in hope of making separate seem a little more equal" (p. 40).

RELATIVE SUCCESS OF THE STATE PARK MOVEMENT

The state park movement in the United States appeared at around the same time that Jim Crow laws and customs were solidifying across the U.S. South. The rules of segregation that characterized Jim Crow emerged after the end of the Reconstruction in 1877 and became a dominant feature of southern life after 1890. In 1896 the U.S. Supreme Court endorsed these rules with the *Plessy v. Ferguson* decision (163 U.S. 537 (1896)). Meanwhile, the nationwide achievements of a state park movement were also ascendant. Although Yosemite had been established as a state-administered park in 1864, development of state parks, including most famously New York's Niagara Falls and Adirondack Mountains, began in earnest by the 1880s. Almost all of the development into the early decades of the twentieth century occurred in regions outside the South (Cox 1988; Landrum 2004).

By the time of the first annual meeting of the National Conference on Parks in 1921, organized in part by National Park Service (NPS) Director Stephen Mather, just under half of the states had reported such parks (Tilden 1962). In the South a few states had preserved historical sites that commemorated Civil War battles and the struggle for Texas independence; likewise, only a few scenic state parks had been established in the region, among them Mount Mitchell in western North Carolina (1915) and Royal Palm, in Florida's Everglades (1916). With little money allocated for state park construction during the 1920s, significant progress toward creating systems of parks around the United States would largely await the funding and labor supplied by the emergency conservation works programs of the New Deal. After

1933 the NPS oversaw the federalization of state park planning and construction, working closely with the Civilian Conservation Corps (CCC) and other federal relief agencies while also cooperating with state agencies. These included newly created park agencies in the South (McClelland 1993; Carr 1998; Landrum 2004).

The movement's main goal was to promote the development of state park systems that would preserve scenic landscapes, ideally distributed to ensure near-to-home access for residents in all sections of each state. New Deal organization and funding would ensure that this collaborative federal/state effort moved steadily toward achieving that goal. In the Jim Crow South, however, the ideal of state park access would not apply to the relatively large African American populations living there. Already excluded from most of the South's recreation facilities (Washington 1928), southern blacks would also be excluded from all but a few of the many state parks constructed under the New Deal.

This increase in state park construction commenced with the creation of the CCC in 1933. NPS planners, however, did not pursue the provision of separate facilities for African Americans until 1935, and no such plans commenced until 1937 (see, for example, Clayton 1935; ADW 1937). The NPS began promoting the construction of so-called Negro parks, some as part of the Recreational Demonstration Area (RDA) program, which sought to build parks on submarginal lands near urban centers. Most RDAs were intended to be eventually turned over to state control as state parks. Such federally led efforts to persuade state agencies to expand state park access for African Americans would grow in the latter 1930s; however, the NPS declined to apply sufficient pressure to the states, which generally did not prioritize the construction of such facilities. As a result, only a small number of state park facilities for African Americans were successfully completed during the New Deal. Between 1935 and 1941, only nine state park facilities were available to African Americans in just five southern states (Figure 1).

Deferring to Jim Crow, these NPS-designed facilities were exclusive spaces. A few of the state parks constructed at that time were designed to be fully separate, for use by African Americans alone. Examples included Arkansas's Watson State Park, Tennessee's T. O. Fuller and Booker T. Washington state parks, and North Carolina's Jones Lake State Park. In other instances planners designed a separate "Negro area" located either directly adjacent to or nearby a normally larger facility for white only use. Between 1937 and 1941, parks of this type included "Negro areas" at Oklahoma's Lake Murray and Roman Nose state parks, and also at South Carolina's Lake Greenwood, Hunting Island, and Mill Creek state parks. After the war the construction of separate "Negro areas" would become the more common approach to providing such facilities, although additional separate African American parks were also created in some states.

Beyond lagging state interest in creating such parks during the New Deal, success was also hindered by local white resistance to siting proposals. Any official good intentions were confounded by local cries of "not-in-my-backyard" by white residents, backed by local political leaders, who refused to allow such facilities near their



FIG. 1—State parks with facilities accessible to African Americans, constructed between 1937 and 1941. (Cartography by the author)

properties and communities. As a result, until the postwar decade the political path of least resistance was simply to allow Negro state park plans to languish. Meanwhile, for whites the construction boom during the New Deal had come close to succeeding in creating the near-to-home access envisioned by the state park movement during the 1920s.

Southern officials could allow such obvious inequity in state park access during the 1930s. In the early decades of the nineteenth century the generally hostile stance in the United States toward African Americans ensured little federal enforcement of the “equal” aspect of the “separate but equal” principle established in *Plessy* (Litwack 1999). The legal and social landscape, however, would undergo significant changes beginning in the 1930s and through the 1940s, leading to postwar attempts at increasing the number of state park facilities available to African Americans in the South. Led largely by African American advocacy organizations and the NAACP in particular, prewar requests turned into postwar demands that, by 1950, went beyond the equalization of separate state parks and instead sought their full integration around the region.

POSTWAR EXPANSION OF STATE PARKS

State park development was largely put on hold during the early 1940s as financial and material resources were diverted to the war effort (Landrum 2004). The postwar years, however, would witness a second nationwide surge in state park construction as the national economy expanded and interest in recreation travel regained its pre-

war momentum. The NPS did not resume its intimate prewar involvement in state park planning, so southern state park agencies themselves would pursue the expansion of state parks in the decade between World War II and *Brown*.

For African Americans throughout the South, access to state parks remained severely limited (McKay 1954). At the end of World War II ten southern states had not created a single state park that was officially accessible to African Americans. With so few facilities available in so few states, publicly owned state parks proved to be an ideal target for NAACP litigation. Results of a 1952 survey conducted by the Southern Regional Council (SRC)—an Atlanta-based, prointegration (since 1949) organization with mainly white membership—demonstrated the stark inequality in state park offerings for African Americans (NS 1954). Emphasizing spatial themes of location, distance, and size, as well as scenic quality, the SRC concluded that the vast inequality of these separate spaces in relation to white only parks was a clear violation of the U.S. Constitution's Fourteenth Amendment.

Such conclusions were becoming more regularly voiced after the war as the gradualist decade unfolded. Beyond state parks, the change was already under way during the 1930s as the NAACP, by then the most influential black advocacy organization, began the process of narrowing its activities to pursue integration in the South (Valocchi 1996). The association created its legal department in 1935, and after 1948 it decided to "accept only legal cases directly challenging segregation" (Valocchi 1996, 124). This transition reflected a general shift in opinion among African American elites toward the pursuit of integration as their chief goal.

The war years proved to be a watershed in this process. The war led many African Americans to question the fight against fascism overseas while facing racial injustice upon their return to the United States, prompting demands for desegregation (Gilmore 2008, 347). This emerging general call was expressed in various essays in *What the Negro Wants* (Logan [1944] 2001). Contributors included liberal, radical, and conservative black voices, all of whom expressed support for desegregation. As Kenneth Robert Jenken stated in the introduction to the 2001 edition, "The debate [among African Americans] in the post-World War II era would no longer be about reforming the old system but about constructing a new one" (p. viii). Among these contributors, W.E.B. Du Bois's essay reviewed his lifetime of activism regarding race, concluding from the results that the majority of Americans would likely continue to follow established custom rather than take action to fight racial injustice. African Americans themselves would therefore need to press for their own advance toward equality, actions that would work for the betterment of all: "It is the duty of the black race to maintain its cultural advance, not for itself alone, but for the emancipation of mankind, the realization of democracy and the progress of civilization" (Du Bois [1944] 2001, 70).

Meanwhile, the NAACP's legal strategy was succeeding, reflecting an increasingly sympathetic federal court system, including the U.S. Supreme Court. Klarman pointed out, for instance, that "by 1950, the NAACP boasted a winning record of well over 90% in the high court" (Klarman 2004, 173). Adding to this trend, suits and

threats of lawsuits against African American exclusion from state parks created a legal reality that southern state governments and their park agencies could not ignore.

Legal action over exclusive state parks began in the late 1940s in Virginia and Texas and expanded to additional states through the 1950s and early 1960s (see, for example, ADW 1948; CD 1949; SH 1956; CDD 1961). Even where suits were not filed, the threat spurred action in state park agencies across the South, accelerating efforts to construct additional state park facilities to produce some semblance of equalization. Equalizing the parks was a daunting task for state agencies, however, because it required a dramatic expansion of facilities in terms of both quantity and quality. Beyond budget limitations and political will that often hindered such action, also working against further success was the ever-present problem of local white resistance to site proposals, which remained a seriously difficult constraint in all corners of the South.

In 1949, for example, the Nashville Girl Scout Council sent a plea to the Tennessee Conservation Commission stating: "We have 500 registered Negro Girl Scouts who are denied any camping experience because there is no site for them to use. This is an important part of our program and, we feel, an experience each girl should have" (Hermann 1949). A sympathetic response from the commissioner was followed by a decade-long search for a suitable site for a state park around Nashville, which ended in failure in 1960 due to an inability to overcome local white resistance. One observer noted that, throughout Tennessee, a "fear of white reaction seemed to be prominent in all considerations for Negro parks" (Coleman 1963, 248). In fact, after creating two of the South's first state parks for African Americans in 1938—T. O. Fuller State Park in Memphis and Booker T. Washington State Park near Chattanooga—Tennessee's park officials failed to open any additional sites for its African American residents, despite considerable planning and effort, prior to park system integration by executive order in 1962 (Coleman 1963).

Without legal action, it was apparent everywhere in the South that such resistance would perpetuate the vast inequality in park accessibility. A lawsuit filed in the summer of 1947 in Virginia District Court ended with an agreement that the Virginia Department of Conservation and Development would open a state park for African Americans at what at the time was called Prince Edward Recreation Area, near Farmville. As the *Chicago Defender* reported in 1948, the suit demanded that either the state "allow Negroes full use of the park system or furnish them with equal accommodation." The state opted to attempt the latter, stating that the development of Prince Edward State Park "would be pushed rapidly," envisioning a 1949 opening day (CD 1948). A 1949 lawsuit filed in Texas would similarly lead to the creation of a "Negro area" in Tyler State Park in 1951.

These states' desire for rapid resolution was not merely the result of official goodwill in a gradualist time but early recognition that increasing African American legal demands would need to be accommodated if white southerners were to hold onto Jim Crow. Florida's park director discussed the strategy at the 1954 annual meeting

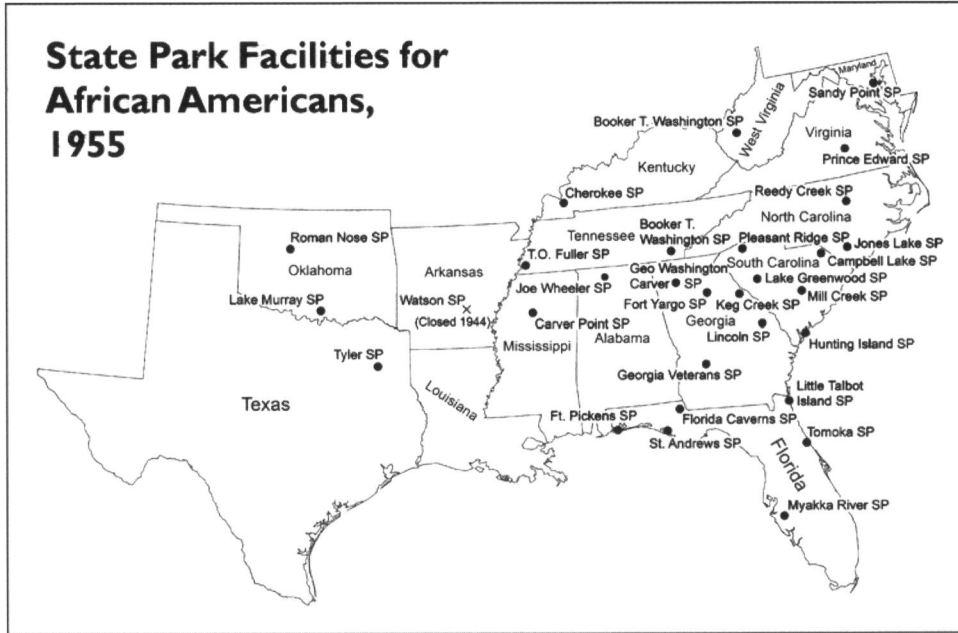


FIG. 2—State parks with facilities accessible to African Americans in 1955 (Cartography by the author)

of southern state park directors (ASSPD 1954). Likewise, Mississippi's State Board of Park Supervisors advocated this approach and hoped that their legislature would provide funds for expansion: "Our hope for maintaining segregation within our State Parks depends to a large extent on our furnishing equal facilities for both races" (SBPS 1955, 7). With more than 200 state parks available to southern whites only (NS 1954), "equalizing" facilities would prove to be an unattainable goal.

Even though their task was overwhelming, the states made some progress in constructing these segregated facilities, particularly between 1949 and 1954. Some states were more prolific than others. Among the most active, South Carolina had built four state parks for African Americans by 1952, including facilities at Lake Greenwood, Hunting Island, Mill Creek, and Campbell Lake, and added one exclusively for African Americans called Pleasant Ridge State Park, near Greenville, which opened in 1955 after several years of delay (NS 1954). Georgia had joined the effort in 1946 and by 1952 offered segregated facilities at Georgia Veterans Memorial, Keg Creek, and George Washington Carver state parks. By 1955 they would expand facilities to include Fort Yargo, Fairchild, and Lincoln state parks (GDSP 1961). Florida opened Little Talbot Island State Park, which contained conscientiously equal facilities for blacks and whites, near Jacksonville in 1951 (O'Brien 2007) and had created additional facilities for African Americans by mid-decade at Saint Andrews, Tomoka, Fort Pickens, Florida Caverns, and Myakka River state parks.

By 1955 all but Louisiana and Arkansas had at least one state park to accommodate African American patrons. Louisiana would add three facilities after 1956; all

were separate “Negro areas” in Bistineau, Chicot, and Fontainebleau state parks (James 1955, 68; LSPRC 1964). This modest expansion around the South did little to alter the overwhelming inequity in state park access, however. Maryland, Virginia, West Virginia, Kentucky, Texas, Alabama, and Mississippi each had succeeded in constructing only one state park to cater to the needs of all of their African American residents. Arkansas had none at all after Watson State Park was closed in 1944 due to lack of facilities (Figure 2). Though clearly inadequate, these meager results represented some progress in overcoming these states’ inability or unwillingness to produce any state parks for African American residents in the era before NAACP legal pressure commenced.

The constitutional problem facing the states was plainly evident. With so few states parks available, most African Americans would need to travel considerable distances to locate one that would welcome them, and many would need to leave their states to find access. Conversely, whites could typically find a park within 50 or so miles of home. Furthermore, where these few separate parks existed, their size was typically dwarfed relative to that of the white system. Writing in *Crisis*, J. Austin Burkhart pointed out that, in 1952, Tennessee’s two state parks for African Americans together comprised a land area of 1,350 acres, whereas just one of the thirteen parks for whites comprised 42,000 acres. As another example, no state park was accessible to African Americans in West Virginia until the 1949 construction of the 7.43-acre Booker T. Washington State Park in Institute. That tiny parcel was overwhelmed by the overall size of West Virginia’s state parks for whites, which by 1955 measured 41,191 acres in all (Myers 1957).

Making such comparisons on a regional scale, the law professor Robert McKay, who utilized the SRC survey results to produce a law review article, noted that, in the nine states responding to the survey, African Americans constituted 22 percent of the population but had access to only 6 percent of the state parks (McKay 1953). The overall difficulty was likely more pronounced than that, for his data excluded several states with no such parks that failed to respond to the survey. In terms of land area available in these parks, McKay calculated that 986,184 acres of state park land were available to whites but that only 8,879 acres were available to blacks—a mere 0.9 percent of the total land area, again based on incomplete data (McKay 1953). Even a state such as South Carolina, which appeared to create an effective parallel state park system for African Americans with five available by 1955, was not immune from criticism. Using the same survey data as McKay, an article in the SRC’s magazine, *New South*, pointed out that, in 1952, “South Carolina Negroes had one-fifth of the parks, though they make up two-fifths of the population” (NS 1954, 4).

COURTROOM SUCCESS AND WHITE RESISTANCE

After adding Prince Edward State Park to its system of eight white-only parks in 1950, Virginia would not create any additional state parks to accommodate its African American residents. This continuing inequality in access would be addressed in a lawsuit soon afterward, this time seeking park integration rather than equalization. In 1951, officials of white-only Seashore State Park, on Virginia’s Cape Henry,

denied four African American men affiliated with the local NAACP chapter entry to the park. This encounter prompted one of the more significant state park lawsuits in the South.

Just months after the grand opening of Sandy Point State Park, on the Chesapeake shore near Annapolis, Maryland, in the summer of 1952, came a second significant lawsuit, *Lonesome v. Maxwell* (123 F. Supp. 1993 (U.S. Dist. Court, D Maryland, 1954)). Like Virginia's Prince Edward State Park, this would be the only state park accessible to African Americans in Maryland. Unlike Virginia's lawsuit, which involved a state park for exclusive African American use, Sandy Point State Park was a dual-use park that contained separate facilities for white and black patrons.

Prompting the Sandy Point State Park lawsuit, eight plaintiffs, represented by the NAACP, claimed that, as the *Atlanta Daily World* put it, "they had been refused admission to well-equipped South Beach . . . and directed to nearby East Beach, a virtually unusable area reserved exclusively for the use of Negroes" (ADW 1953). Judge Calvin Chestnut initially agreed, ruling in June 1953 that the beaches and segregated facilities were unequal, but he vacated the order the following month after the state improved the East Beach facilities to "equalize" them. In 1954, after the Supreme Court ruled in *Brown*, the Fourth Circuit Court of Appeals, citing *Brown*, overturned the state park ruling and ordered the park's integration. The Supreme Court upheld the Appeals Court ruling in November 1955.

Although the Virginia lawsuit had been filed earlier, in 1951, the judge in the case delayed a decision until *Brown* and the Maryland case appeal were decided. In the Virginia case, *Tate v. Department of Conservation and Development* (133 F. Supp. 53 (D.C. Eastern Dist. Va., Norfolk Div., 1955)), when faced with the suit the state expressed willingness "to provide additional park and recreation facilities similar to those provided White citizens at the Seashore State Park" (Almond 1955). However, between 1951 and 1955 the state had not taken any steps to do so.

Citing the Maryland case and *Brown* as precedents, Judge Walter Hoffman ruled in 1955 "that plaintiffs' rights to use and enjoy the facilities at Seashore State Park have been violated under the Constitution of the United States" and that the state was thereby restrained from denying access to the park (*Tate* 1955). Significantly, Judge Hoffman later ruled that the commonwealth could not sell or lease the public park to private operators to avoid the order (Werner 1956). Upheld under appeal, and with a Supreme Court refusal to reexamine the case, the ruling effectively meant that other southern states would also be barred from leasing public schools to private operators to avoid desegregation orders—a strategy considered in a number of states in the wake of the *Brown* decision.

Maryland, a border state, announced that its state park system would be integrated immediately. After the November 1955 Supreme Court ruling upheld the appeal in the Sandy Point case, Governor Theodore McKeldin stated that "officials of the State of Maryland have never to my knowledge questioned the supremacy of the U.S. Constitution or the interpretation of that document by the Supreme Court of the U.S. and I see no reason to do so now" (CD 1955). Virginia's response, on the

other hand, reflected the reactionary mood of most white southerners during the mid-1950s in the post-*Brown* backlash. State Conservation Commissioner Raymond Long said that “the ‘only course’ left to the state is to lease its state parks and other recreational facilities to private operators” (CD 1955), an option the judge struck down. Virginia’s Governor Thomas B. Stanley opted to close Seashore State Park rather than comply with the integration order—and he even considered closing Virginia’s entire park system.

As Virginia officials contemplated the fate of Seashore State Park and the rest of the system, the governor received support letters from white Virginians who praised his resistance to the ruling. For example, one writer expressed support for the governor’s defiance, connecting the park issue to other grievances against the trend toward race mixing: “After all the wrangle over schools, parks and the marriage of the white girl and the Chinese sailor, all the colored want is social equality with white men and to become a part of white society. That is about as nigh impossible as anything I can think of right at present. It is a reenactment of carpetbaggers and Reconstruction days” (Mitchell 1955).

Although most letter writers were enthusiastic about resisting integration orders, the thought of closing all Virginia parks generated ambivalence as the public faced the prospect of losing all such recreation opportunities. Acknowledging this concern, the governor decided not to close all parks. However, Seashore State Park—the focus of the ruling—remained closed from 1955 through 1963, when it reopened on a nonsegregated basis but limited to camping only.

The NAACP victories in the *Brown*-influenced Maryland and Virginia state park cases, along with continuing legal pressures elsewhere, influenced policies around the region. By 1957, other border states—Kentucky and West Virginia—along with Oklahoma, had integrated their park systems. Elsewhere, after the postwar expansion of construction, only a few states continued to produce facilities for African Americans. Georgia and South Carolina, for instance, each added one accessible park, while Florida produced four additional facilities into the early 1960s (O’Brien 2007).

Throughout this time the NAACP and newly emerging civil rights groups were continuing to put legal pressure on Southern states, both in the courts and through emerging acts of civil disobedience. South Carolina, for instance, had closed Edisto State Park in 1956, anticipating defeat in a lawsuit demanding access. It later closed its entire state park system for one year following a system-wide integration order in 1963 (O’Brien 2007). In May 1960, several months after the first lunch-counter sit-in in Greensboro, North Carolina, NAACP Executive Secretary Roy Wilkins announced a summer campaign of civil disobedience in the South’s state and municipal parks and public beaches, and called on all branches to participate: “This memorandum urges your branch to take the leadership in encouraging Negro families to seek service at all municipal and state beach and park facilities maintained by taxes. Such demonstrations have deeper meaning than securing relief from summer heat; they proclaim also our determination not to forego any of our constitutional rights” (NAACP 1960).

Beyond the border states, the accumulation of such pressures pushed additional states, including Florida, Texas, and Tennessee, to integrate their state parks between 1960 and 1963. The Deep South resisted state park desegregation until after the 1964 Civil Rights Act outlawed official segregation and after another NAACP victory—in *Watson v. City of Memphis* (373 U.S. 526 (1963))—ruled explicitly that segregated public parks were unconstitutional, ordering their integration without delay. For most agencies, state park desegregation was a quiet affair, not announced in the press. Officials generally feared the potential for violent white reaction—a reaction that failed to materialize.

PRESSURE BRINGS CHANGE

In 2005 James Cobb noted that the promise held by the “gradualist” decade between 1945 and 1954 has arguably been overstated. He pointed to countertrends, such as the white reaction to the U.S. Supreme Court’s ruling against the all-white primary in 1944, which prompted a renewed and successful effort to keep southern blacks from voting despite growth in black voter registration. He also pointed to the rise of the Dixiecrats in 1948, which demonstrated the rejection by white southern Democrats of President Truman’s modest civil rights program (Bartley 1995). Additionally, Cobb reminded us that not much concern about segregation existed among whites in areas outside the South, and therefore little outside pressure for transformation before 1954. As noted earlier, Du Bois concluded from experience by the mid-1940s that white Americans could not be relied on to pursue the cause of racial equality, leaving it to African Americans to press for it themselves (Du Bois [1944] 2001).

On this point Cobb quoted the black journalist John McCray at midcentury in Columbia, South Carolina’s newspaper, *Lighthouse and Informer*. McCray stated, “What has the South done for the Negro? Nothing, Nothing they didn’t have to do. Everything that has been done has been done by the Negro, or by the threat of federal court action” (Cobb 2005, 39). This general observation clearly applies to the provision of the South’s state park facilities for African Americans as well as to the eventual integration of these park systems.

Whether discussing public state parks, public schools, or other institutions, without the NAACP’s legal pressure and the sympathetic support of the federal courts, including the U.S. Supreme Court, one can only guess at just how long Jim Crow would have persisted. Based on the evidence regarding state parks, access for southern blacks would likely have remained inadequate if not for the NAACP’s demands for integration and the impact of the landmark *Brown* ruling.

NOTE

1. The name “Jim Crow” came from an early-nineteenth-century minstrel character. By late in that century and for reasons unknown, the phrase had become widely used as a label for the discriminatory segregation system that characterized the South between the 1890s and 1960s (Litwack 1999, xiv).

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